

1 ENGROSSED SENATE
2 BILL NO. 1570

By: Rosino of the Senate

3 and

4 Lawson and Pae of the House

5
6 [children - Department of Child Safety and Well-
7 being - transition plan - employees - administrative
8 rules - Commissioner of Child Safety and Well-being -
9 appointment and removal - powers and duties - Board
10 of Child Safety and Well-being - membership -
11 compensation - codification - effective date]

12 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

13 SECTION 1. NEW LAW A new section of law to be codified
14 in the Oklahoma Statutes as Section 3-1-101 of Title 10A, unless
15 there is created a duplication in numbering, reads as follows:

16 A. There is hereby created the Department of Child Safety and
17 Well-being, which shall consist of the Commissioner of Child Safety
18 and Well-being and such divisions, offices, positions, and advisory
19 boards or committees as may be established by the Commissioner or by
20 law.

21 B. 1. All applicable powers, duties, and functions of the
22 Child Welfare Services Division of the Department of Human Services
23 shall be fully transferred to the Department of Child Safety and
24 Well-being on July 1, 2027.

1 2. All applicable powers, duties, and functions of the Office
2 of Juvenile Affairs shall be fully transferred to the Department of
3 Child Safety and Well-being on July 1, 2027.

4 3. All applicable powers, duties, and functions of the Oklahoma
5 Commission on Children and Youth shall be fully transferred to the
6 Department of Child Safety and Well-being and the the Office of
7 Client Advocacy within the State Department of Health on July 1,
8 2027. Oversight and investigative functions of the Oklahoma
9 Commission on Children and Youth that necessitate an independent
10 oversight agency shall be transferred to the Office of Client
11 Advocacy. All other functions of the Oklahoma Commission on
12 Children and Youth including, but not limited to, programs and
13 services for children and youth shall be transferred to the
14 Department of Child Safety and Well-being.

15 C. The Governor may appoint, and fix the compensation of, an
16 interim Commissioner of Child Safety and Well-being to begin
17 development and implementation of the transition plan described in
18 subsection D of this section until the Board of Child Safety and
19 Well-being created under Section 3 of this act convenes and appoints
20 a permanent Commissioner. Until such time, the interim Commissioner
21 shall have the same powers and duties as the permanent Commissioner
22 as provided by Section 2 of this act.

23 D. Not later than November 1, 2026, the Commissioner of Child
24 Safety and Well-being and the Advocate General of the Office of

1 Client Advocacy, in collaboration with the Director of Human
2 Services, the Executive Director of the Office of Juvenile Affairs,
3 and the Director of the Oklahoma Commission on Children and Youth,
4 shall develop and implement a plan for the orderly establishment of
5 the Department of Child Safety and Well-being, its transition from
6 the affected state agencies, and the division of the Oklahoma
7 Commission on Children and Youth between the Department of Child
8 Safety and Well-being and the Office of Client Advocacy. The plan
9 shall be published online and electronically submitted to the
10 Governor, the President Pro Tempore of the Senate, and the Speaker
11 of the House of Representatives. The plan shall:

12 1. Provide for, as applicable, the transfer of all property,
13 equipment, supplies, records, matters pending, assets, future
14 liabilities, fund balances, encumbrances, obligations, indebtedness,
15 and legal and contractual rights and responsibilities of the Child
16 Welfare Services Division of the Department of Human Services, the
17 Office of Juvenile Affairs, and the Oklahoma Commission on Children
18 and Youth;

19 2. Provide for, in accordance with subsection E of this
20 section, the transfer of employees from the Child Welfare Services
21 Division of the Department of Human Services, the Office of Juvenile
22 Affairs, and the Oklahoma Commission on Children and Youth;

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1 3. Determine the allocation of resources between the newly
2 created Department of Child Safety and Well-being, the Office of
3 Client Advocacy, and the Department of Human Services;

4 4. Determine the allocation of functions where the performance
5 of services may be shared between the Department of Child Safety and
6 Well-being and the Department of Human Services, as practicable;

7 5. Determine whether any administrative support services or
8 office space can continue to be provided by the Department of Human
9 Services;

10 6. Delineate the allocation of functions and responsibilities
11 of the the Oklahoma Commission on Children and Youth between the
12 Department of Child Safety and Well-being and the Office of Client
13 Advocacy in accordance with paragraph 3 of subsection B of this
14 section;

15 7. Detail a strategy to improve the safety and well-being of
16 children in this state, especially children in foster care and other
17 vulnerable children, through alignment of programs and services for
18 children and enhanced care coordination. The strategy shall
19 emphasize prevention and shall include a child behavioral health
20 component; and

21 8. Identify other areas deemed relevant by the Commissioner and
22 make recommendations to achieve an orderly transition and ensure
23 continuity of services.
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1 E. 1. All employees of the Child Welfare Services Division of
2 the Department of Human Services shall be transferred to the
3 Department of Child Safety and Well-being not later than July 1,
4 2027.

5 2. All employees of the Office of Juvenile Affairs shall be
6 transferred to the Department of Child Safety and Well-being not
7 later than July 1, 2027.

8 3. Each employee of the Oklahoma Commission on Children and
9 Youth shall, not later than July 1, 2027, be transferred to either
10 the Department of Child Safety and Well-being or the Office of
11 Client Advocacy, based upon the responsibilities of each employee
12 relative to the delineation of program areas provided in paragraph 3
13 of subsection B of this section.

14 4. No employee shall be transferred to the Department of Child
15 Safety and Well-being or the Office of Client Advocacy except on the
16 freely given written consent of the employee. Any employee who is
17 transferred shall not be required to accept a lesser grade or salary
18 than presently received. All employees shall retain leave, sick,
19 and annual time earned, and any retirement and longevity benefits
20 that have accrued during their tenure with the Department of Human
21 Services, the Office of Juvenile Affairs, or the Oklahoma Commission
22 on Children and Youth. The transfer of personnel between the state
23 agencies shall be coordinated with the Office of Management and
24 Enterprise Services.

1 F. 1. The Director of the Office of Management and Enterprise
2 Services shall coordinate the transfer of funds, allotments,
3 purchase orders, and outstanding financial obligations or
4 encumbrances as provided for in this section.

5 2. The Department of Human Services, the the Office of Juvenile
6 Affairs, and the Oklahoma Commission on Children and Youth may use
7 available funds for the transition initiative.

8 G. 1. On July 1, 2027, the administrative rules related to any
9 programs or services provided by the Department of Child Safety and
10 Well-being previously promulgated by the Director of Human Services,
11 the Board of Juvenile Affairs, or the Oklahoma Commission on
12 Children and Youth shall be transferred to and become a part of the
13 administrative rules of the Department of Child Safety and Well-
14 being. The Office of Administrative Rules in the Office of the
15 Secretary of State shall provide adequate notice in "The Oklahoma
16 Register" of the transferred rules and shall place the transferred
17 rules under the Oklahoma Administrative Code section of the
18 Department of Child Safety and Well-being. Beginning July 1, 2027,
19 any amendment, repeal, or addition to the transferred rules shall be
20 under the rulemaking authority of the Board of Child Safety and
21 Well-being.

22 2. On July 1, 2027, the administrative rules related to any
23 programs or services provided by the Office of Client Advocacy
24 previously promulgated by the Oklahoma Commission on Children and

1 Youth shall be transferred to and become a part of the
2 administrative rules of the State Department of Health. The Office
3 of Administrative Rules in the Office of the Secretary of State
4 shall provide adequate notice in "The Oklahoma Register" of the
5 transferred rules and shall place the transferred rules under the
6 Oklahoma Administrative Code section of the State Department of
7 Health. Beginning July 1, 2027, any amendment, repeal, or addition
8 to the transferred rules shall be under the rulemaking authority of
9 the State Commissioner of Health.

10 H. Upon completion of the transfers described in this section,
11 the Child Welfare Services Division of the Department of Human
12 Services, the Office of Juvenile Affairs, the Board of Juvenile
13 Affairs, and the the Oklahoma Commission on Children and Youth shall
14 be abolished.

15 SECTION 2. NEW LAW A new section of law to be codified
16 in the Oklahoma Statutes as Section 3-1-201 of Title 10A, unless
17 there is created a duplication in numbering, reads as follows:

18 A. The chief executive officer of the Department of Child
19 Safety and Well-being shall be the Commissioner of Child Safety and
20 Well-being, who shall act for the Department in all matters except
21 as may be otherwise provided by law.

22 B. The Commissioner shall be appointed by and shall serve at
23 the pleasure of the Board of Child Safety and Well-being established
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1 under Section 3 of this act and may be removed or replaced without
2 cause.

3 C. The Commissioner shall have the power and duty to:

4 1. Administer the programs and services of the Department of
5 Child Safety and Well-being;

6 2. Establish internal policies and procedures of the Department
7 and recommend rules to the Board;

8 3. Pursuant to legislative authorization, employ, discharge,
9 appoint, or contract with, and fix the duties and compensation of,
10 such assistants, attorneys, law enforcement officers, probation
11 officers, psychologists, social workers, medical professionals,
12 child welfare specialists, administrative, clerical, technical, and
13 program staff, investigators, and such other personnel, either on a
14 full-time, part-time, fee or contractual basis, as in the judgment
15 and discretion of the Commissioner shall be deemed necessary in the
16 performance or carrying out of any of the purposes, objectives,
17 responsibilities, or statutory provisions relating to the
18 Department, or to assist the Commissioner in the performance of
19 official duties and functions;

20 4. Establish within the Department such divisions, offices,
21 positions, and advisory boards or committees as the Commissioner
22 deems necessary to carry out the functions of the Department;

23 5. Create the annual legislative budget request for the
24 Department to be approved by the Board;

1 6. Accept, use, and administer grants, allotments, funds,
2 appropriations, gifts, devises, bequests, and other property made or
3 offered to the Department; and

4 7. Exercise all incidental powers which are necessary and
5 proper to implement the purposes of the Department.

6 D. In the event of the Commissioner's temporary absence, the
7 Commissioner may delegate the exercise of such powers and duties to
8 a designee during such absence. In the event of a vacancy in the
9 position of Commissioner, the Board shall appoint a new
10 Commissioner. The Board may designate an interim or acting
11 Commissioner who is authorized to exercise such powers and duties
12 until a permanent Commissioner is employed.

13 SECTION 3. NEW LAW A new section of law to be codified
14 in the Oklahoma Statutes as Section 3-1-301 of Title 10A, unless
15 there is created a duplication in numbering, reads as follows:

16 A. There is hereby created the Board of Child Safety and Well-
17 being, which shall be the governing board of the Department of Child
18 Safety and Well-being established under Section 1 of this act. The
19 Board shall consist of the following nine (9) members, whose initial
20 appointments shall be made not later than November 1, 2026:

21 1. Five members appointed by the Governor:

22 a. at least two of whom shall have professional
23 experience in social work, child welfare, children's
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- 1 behavioral health, community-based youth services,
2 juvenile justice, or criminal justice,
3 b. at least one of whom shall have lived experience as a
4 parent, foster parent, foster child, kinship
5 caregiver, juvenile-justice-involved youth, or other
6 relevant lived experience, and
7 c. at least one of whom shall have professional
8 experience in executive leadership or financial
9 management of a large-scale business enterprise;

10 2. Two members appointed by the President Pro Tempore of the

11 Senate:

- 12 a. at least one of whom shall have professional
13 experience in social work, child welfare, children's
14 behavioral health, community-based youth services,
15 juvenile justice, or criminal justice, and
16 b. at least one of whom shall have professional
17 experience in executive leadership or financial
18 management of a large-scale business enterprise; and

19 3. Two members appointed by the Speaker of the House of

20 Representatives:

- 21 a. at least one of whom shall have professional
22 experience in social work, child welfare, children's
23 behavioral health, community-based youth services,
24 juvenile justice, or criminal justice, and

1 b. at least one of whom shall have professional
2 experience in executive leadership or financial
3 management of a large-scale business enterprise.

4 The Commissioner of Child Safety and Well-being shall be an ex
5 officio member of the Board, but may vote only in case of a tie
6 vote.

7 B. 1. Each member of the Board shall serve at the pleasure of
8 his or her appointing authority and may be removed or replaced
9 without cause.

10 2. To be eligible for appointment to the Board, a person shall:

- 11 a. be a citizen of the United States,
12 b. be a resident and qualified elector of this state,
13 c. not have been convicted of a crime listed in
14 subsection D of Section 112.5 of Title 43 of the
15 Oklahoma Statutes, and
16 d. not have a direct financial interest in any matter
17 that comes before the Board or in any program,
18 service, or contract related to the Department.

19 3. Each member of the Board shall successfully complete an
20 Oklahoma State Bureau of Investigation name-based criminal history
21 records search.

22 C. 1. The Board shall elect a chair and vice chair from among
23 its members.

1 2. The Board shall hold meetings as necessary at a place and
2 time to be fixed by the Board. Special meetings may be called by
3 the chair or by five members of the Board by delivery of electronic
4 notice to each member of the Board.

5 3. A majority of members serving on the Board shall constitute
6 a quorum of the Board.

7 4. Members of the Board shall receive necessary travel expenses
8 according to the provisions of the State Travel Reimbursement Act,
9 but shall receive no other compensation. Travel expenses shall be
10 paid from funds available to the Department.

11 D. The Board shall have the power and duty to:

12 1. Appoint and fix the compensation of the Commissioner of
13 Child Safety and Well-being in accordance with Section 3601.2 of
14 Title 74 of the Oklahoma Statutes;

15 2. Promulgate rules as necessary to carry out the duties of the
16 Department;

17 3. Supervise the activities of the Department and assist the
18 Department in conducting periodic reviews and planning activities
19 related to the goals, objectives, priorities, and policies of the
20 Department;

21 4. Review and approve the annual legislative budget request of
22 the Department and monthly financial reports of the Department; and
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5. Establish contracting procedures for the Department and approve rates of payment for services provided by contract in accordance with the Oklahoma Central Purchasing Act.

SECTION 4. This act shall become effective September 1, 2026.

Passed the Senate the 25th day of March, 2026.

Presiding Officer of the Senate

Passed the House of Representatives the ____ day of _____,
2026.

Presiding Officer of the House
of Representatives